SERVICE LEVEL AGREEMENT/ REFERRAL AGREEMENT

This Principal Agreement ("**the Agreement**") is being made and executed at Pune on this __th day of _____, 2026 ("**Execution Date**") and shall be effective from __th day of ____, 2026 ("**Effective Date**").

BY AND BETWEEN

COSMOS CO-OPERATIVE BANK LTD., PAN AAAAT0742K a corporate body formed, established and deemed to be registered under the Multi State Co-operative Societies Act, 2002 and governed under the Banking Regulation Act, 1949 having its Registered and Head office at: "Cosmos Bhawan" Plot No. 6, S.No. 132/B, ICS Colony, Ganeshkhind Road, Pune – 411007 Maharashtra, through its **authorized officer/signatory _____, Age – Adult , Occupation – Service.**

(Hereinafter referred to as the "**BANK**", *which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors, representatives and permitted assigns)*

…… PARTY OF THE FIRST PART

AND

Mr./Mrs./Ms._____, Age - Adult, , PAN - _____.

OR

M/S _____, a Proprietary Firm represented through its Proprietor Mr./Mrs./Ms._____, Age - Adult, PAN - _____.

OR

M/s. _____, PAN - _____, a Partnership Firm, registered under Indian Partnership Act, 1932 Represented through its Managing Partners/Authorised Signatory,

i. Mr./Mrs./Ms. _____

Age: Adult, PAN - _____

ii. Mr./Mrs./Ms. _____

Age: Adult, PAN - _____

OR

M/s. _____, PAN - _____, a Limited Liability Partnership Firm, registered under Limited Liability Partnership Act, 2008 Represented through its Designated Partners/Authorised Signatory,

i. Mr./Mrs./Ms. _____

Age: Adult, PAN - _____

ii. Mr./Mrs./Ms. _____

Age:Adult, PAN - _____

OR

_____ PRIVATE LIMITED, CIN – _____, a company incorporated under the provisions of the Companies Act, 1956/Companies Act 2013, through its Managing Director/Authorised Signatory, Mr./Mrs. _____, Age - Adult, PAN-_____

(Hereinafter referred to/collectively referred to as **"Direct Selling Agent (DSA)"**, *which expression shall, unless it be repugnant to the meaning or context thereof, mean and include its subsidiaries, legal representatives, successors and permitted assigns (where the/a Service Provider is a company incorporated under the Companies Act 1956 or Companies Act 2013 or any other Body Corporate), the partner(s) from time to time of the firm, the survivor(s) of them and the heirs, executors, administrators, legal representatives and successors of the partners and permitted assigns (where the/a Service Provider is a partnership firm), his/her heirs, executors, administrators, legal representative and permitted assigns (where the/a Service Provider is an individual/Sole Proprietor), the members or member for the time being of the said Hindu Undivided Family and their respective heirs, executors, administrators, legal representatives, successors and permitted assigns (where the/a Service Provider is a Hindu Undivided Family)*

…… PARTY OF THE SECOND PART

(The Bank and Direct Selling Agent shall, wherever the context so requires, hereinafter be individually referred to as the "Party" and collectively as "Parties").

WHEREAS:

A. The Bank is a leading Multi-state Scheduled Co-operative Bank licensed and regulated by the Reserve Bank of India ("RBI") and is inter-alia engaged in the business of Banking with an objective to provide personalized banking services to varied customer base ensuring highest standards of banking practices by offering real-time, efficient and secure banking to its customers all over India with 183 branches across India with a network of ATMs.

B. The Bank being desirous of engaging Direct Selling Agent for providing services relating to lead generation, had invited proposals from interested parties, who are willing to render such services of Direct Selling Agent to the Bank.

C. Pursuant to the proposal of the Bank, the Direct Selling Agent has expressed its interest to provide services of business facilitator to the Bank.

D. Direct Selling Agent has also represented to the Bank that the Direct Selling Agen has sufficient knowledge, expertise, competency and appropriate human and other resources as required for rendering the Services.

E. Direct Selling Agent has also represented to the Bank that Direct selling agent is not related to Director/ key management personnel including their relatives of the Bank.

F. Direct Selling Agent acknowledges that based on the above representations, the Bank has selected the Direct Selling Agent for availing the services which are more particularly described in **Annexure A** – **Scope of Services** (hereinafter referred to as "Services") of this agreement.

G. The Parties are desirous of recording the terms as agreed between the Parties, as set out hereinafter.

NOW, THEREFORE, in consideration of the aforementioned, mutual promises, covenants contained herein and intending to be legally bound hereby, the parties agree as follows:

1. DEFINITIONS –

In this Agreement (which expression includes the Recitals, the Exhibits, Appendices and any attachments hereto), the following words and phrases shall, unless the context otherwise requires, have the following meanings:-

(a) **"Agreement"** - means this Agreement and shall include any and all schedules, recitals, annexure and exhibits which are attached to it or incorporated in it by reference and also includes any Annexures, extension/s addendum/s and/or amendment/s if any to this Agreement from time to time by the parties in writing.

(b) **Applicable Law"** - shall mean any statute, law, regulation, ordinance, rule, judgment, notification, order, decree, rule of common law, by-law, government approval, clearance, directive, guideline, policy, requirement, budgetary declarations, circular, press notes or other governmental restrictions or any other similar F form of decision of, or determination or any interpretation or administration having the force of law or any of the foregoing, by any court of India or any Government Authority of India, having jurisdiction over the matter in question, whether in effect as of the date of this Agreement or thereafter , and the word "Laws" shall be construed accordingly.

(c) **"Commission" -** shall mean the consideration payable by the Bank to the Direct Selling Agent for each converted lead, which shall become payable only upon disbursement of such loan/advance for which lead was generated by Direct Selling Agent.

(d) **"Confidential Information"** - shall mean and include any and all information whether commercial, financial, technical or otherwise of whatever nature, used in or otherwise made available or which may be disclosed by or at the direction of either party and/or its Affiliates to the other party whether in written, oral or on magnetic or other media exchanged to between the Parties, prior to or during the term of this Agreement or which is disclosed as a result of the Parties' discussions or to which the other Party may be provided access by the disclosing Party in accordance with this Agreement, or which is generated as a result of, incidental to or in connection with the Purposes of this Agreement, which is not known or generally made available to the public at large, including without limitation, data, Source code, software and documentation, existing systems and computer software, future projects, customer data, customer information, business development or planning, commercial relationships and negotiations, the

marketing of goods or services (including customer names and lists, sales targets, statistics,) financial statements and other financial information, employees lists, salaries and benefits and all other data or information including information which is disclosed in any tangible or intangible form which may be contained in or discernible from any form whatsoever, whether or not that information is is clearly labelled or marked or designated as confidential or proprietary or it's equivalent and all matters arising in the course of this Agreement.

(e) **"Direct Selling Agent"** - shall mean the Business Facilitator Direct engaged/appointed by the Bank for providing services relating to lead generation which are more particularly described in **Annexure A** – **Scope of Services** of this agreement.

(f) **"Effective Date" -** means the date of execution of this Agreement from which this Agreement and the obligations hereunder shall come into effect between the Parties.

(g) **"Force Majeure" -** shall mean act of God including but not limited to fire, flood, earthquake, windstorm or other natural disaster, act of any sovereign including but not limited to war, invasion, act of foreign enemies, hostilities, whether war be declared or not, civil war, rebellion, strike, government actions, insurrection, any type of epidemics and/or pandemics being beyond the control of any of the Parties and affecting performance of this Agreement.

(h) **"Intellectual Property Rights" -** means and includes all intellectual property and all rights therein owned by a party including but not limited to, all inventions (whether patentable or not, and whether or not patent protection has been applied for or granted), API(s), API Rights, API Data, Computer Programs, Software, databases, Patents, improvements, developments, discoveries, proprietary information, trademarks, service marks, trademark applications, trade names, and goodwill associated therewith, know-how, trade secrets and the right to limit the use or disclosure thereof, processes, designs (whether or not registrable and whether or not design rights subsist in them), all such works in which copy-right may subsist (including but not limited to computer software programmes and preparatory and design materials), domain names, etc. The rights owned by a party in its Intellectual Property shall be defined, collectively, as "Intellectual Property Rights." It shall also mean:-

I. all rights, powers and privileges conferred by, or arising under, any laws relating to copyright, patents, registered and unregistered trademarks, registered designs, trade secrets, know-how, or confidential information; and

II. all other intellectual property as defined in Article 2 of the Convention Establishing the world Intellectual Property Organisation of 1967;

III. all the intellectual property as defined and described under relevant provisions and regulations of **Agreement on Trade Related Aspects of Intellectual Property Rights (TRIPS).**

(i) **"Lead/Referral" -** shall mean and include the details or information about a future/prospective customer or non-customer of bank, which is shared by the bank, who is interested in availing loan and advances from the Bank.

(j) **"Person"** - shall unless specifically provided otherwise, mean any individual, body corporate, corporation, partnership, joint venture, trust or Government Authority as the context may admit.

(k) **"Services"** - shall mean and include the services to be provided by the Direct Selling Agent to the Bank from time to time in accordance with the provisions of this Agreement which are more particularly detailed in the **Annexure A** – **Scope of Services** annexed to this agreement.

(l) **"Territory"** - shall be allocated during time of engagement by the Bank in Writing to the Direct Selling Agent. Any change in "Territory" shall be communicated by the Bank in writing to the Direct Selling Agent from time to time.

(m) **"Third Party"** - means any Person who is not a party to this Agreement.

(n) **"Years" -** shall mean, include and deem to be understood as calendar year for this presents.

2. INTERPRETATION -

(a) Recitals shall form a part of this Agreement.

(b) The headings and sub-headings are used for convenience and ease of reference and are not to be construed in the construction or interpretation of any provision of this Agreement.

(c) Unless the context specifies otherwise, reference to the singular includes a reference to the plural and vice versa, and reference to any gender includes a reference to all other genders.

(d) Unless the context specifies otherwise, references to the Recitals, Clauses and Schedules shall be deemed to be a reference to the recitals, clauses and schedules of this Agreement.

(e) References to a statute or statutory provision or any enactment are to be construed as referring also to any amendment or re-enactment (whether before or after this Agreement becomes effective), any previous enactment, which such enactment has replaced (with or without amendment), and to any regulation or order made under it.

(f) Reference in this Agreement to any statute or regulation made using a commonly used abbreviation, shall be construed as a reference to the short title of the statute or full title of the regulation.

(g) The words "include", "including" and "among other things" shall deemed to be followed by "without limitation" or "but not limited to" whether or not they are followed by such phrases or works like import.

3. APPOINTMENT OF DIRECT SELLING AGENT (DSA) -

Bank hereby appoints Direct Selling Agent as its non-exclusive selling agent for the services in the territory and Direct Selling Agent hereby accepts such appointment. Direct Selling Agent's sole authority shall be to solicit customers for the services in the territory in accordance with the terms of this agreement. Direct Selling Agent shall not have the authority to make any commitments whatsoever on behalf of Bank. The Bank reserves the right to appoint any other Direct Selling Agent in respect of the same area where the party of the second part in the capacity of Direct Selling Agent is already providing the services or in any other area of operation of the Bank.

4. DIRECT SELLING AGENT REPRESENTATIONS, WARRANTIES AND UNDERTAKING -

The Direct Selling Agent hereby represents, warrants and confirms that:-

(a) Direct Selling Agent shall use his best efforts to promote the services and maximize the sale of the services in the territory. Direct Selling Agent shall also provide reasonable assistance to Bank in promotional activities in the territory. Direct Selling Agent will assist

the Bank by taking part in all promotional events, use the marketing inputs judiciously for maximizing lead generation for the Bank.

(b) DSA has full capacity, power and authority required as per applicable laws, regulations and orders of statutory, regulatory and government authorities and agencies of India to enter into this Agreement and during the continuance of this Agreement, will continue to have full capacity, power and authority to carry out and to fulfil/perform its obligations and has already taken and will continue to take all necessary and further actions, (including wherever applicable without limitation obtaining of necessary approvals/consents/licenses as are applicable under Applicable Law).

(c) DSA will, at all times during the performance of its obligations under this Agreement, ensure compliance with all applicable laws.

(d) DSA will take all reasonable efforts to ensure that its respective obligations under this Agreement are fulfilled in conjunction with the timelines for lead generation as agreed between the Parties from time to time.

(e) DSA hereby agrees and undertakes to comply with the terms of this agreement and assure its due performance.

(f) DSA hereby represents and warrants that it shall abide by, comply with and be bound by all the rules and regulations issued by RBI as applicable and in existence or in force from time to time and any modification through any order, direction, notice, instruction issued by RBI and in force from time to time.

(g) DSA shall not do any act or conduct any activity that would affect the goodwill and reputation of the Bank or which would affect the interest of the Bank in any manner.

(h) DSA represents and warrants that its personnels/officials/employees are properly trained and possess the requisite skills and qualifications to perform the services in a professional and competent manner.

(i) DSA represents and warrants that it has implemented appropriate technical and organizational measures to protect Bank's data against unauthorized or unlawful processing and against accidental loss, destruction or damage which is provided for performing the services under this agreement.

(j) DSA further represents and warrants that all information and documents in relation to lead generation provided to the bank under this agreement are accurate, complete and free from material errors.

(k) DSA further represents and warrants that it has complied in all material respects with all taxation laws in all jurisdictions in which it is subject to taxation and has filed all tax returns and paid all taxes and statutory dues due and payable by it and, to the extent any taxes are not due, has established reserves that are adequate for the payment of those taxes and statutory dues.

(l) DSA has not taken any action / other steps / legal proceedings started by or against it in any court of law / other authorities for its insolvency, bankruptcy, winding up, dissolution, administration or re-organization or for the appointment of a receiver, administrator, administrative receiver, trustee or similar officer of the DSA or of any or for all if its assets.

(m) DSA has the necessary skills, knowledge, experience, expertise, required capital net worth, adequate and capability to duly perform Direct Selling Agent's obligations in accordance with the terms of this Agreement and to the satisfaction of the Bank, provided however that the Bank's judgement as regards the quality and skills of the DSA shall be final and binding on the Direct Selling Agent.

(n) The execution of this Agreement and providing Services hereunder, does not and will not violate any Applicable Law and further, will not violate or breach any covenants, stipulations or conditions of any agreements or undertaking entered into by the Direct Selling Agent with any other Person/entity/corporation/institution.

(o) DSA shall take all reasonable measures to ensure that information/data that is disclosed or that it may receive pursuant to this agreement, is and remains secure and it shall not use, analyse or access the Bank data traffic or any other data except for the limited purposes necessary for undertaking its contractual obligations as set out herein. The Services will be performed in a competent manner and substantially in accordance with any mutually agreed specifications.

(p) The Direct Selling Agent hereby acknowledges and accepts that the Bank has relied upon the above representations and warranties and have entered into this Agreement.

(q) The Direct Selling Agent represents and warrants that he has all the necessary legitimate rights, licenses and/or authorization relating to the Services rendered under this agreement and for providing the Services and safe guarding the Confidential Information.

(r) The Direct Selling agent will not appoint any Sub-agent/sub-contractor for the said purpose unless except as expressly authorized by the Bank.

5. BANK 'S REPRESENTATION, WARRANTIES AND UNDERTAKING -

(a) The Bank represents and warrants that it possesses the legal authority, permissions, and rights necessary to enter into this agreement.

(b) The Bank undertakes to cooperate fully with the Direct Selling Agent throughout the term of this agreement.

(c) The Bank undertakes to inform the Direct Selling Agent of any new products or services that are being introduced/launched/offered by the Bank to its customers.

6. RESERVED RIGHTS -

Bank reserves the right to solicit/engage other Agents i.e. Direct Selling Agents directly from businesses within the territory. Direct Selling Agent's task is to solicit customers from all potential businesses in the territory.

7. CONFLICT OF INTEREST -

Direct Selling Agent warrants to Bank that it does not currently represent or promote any Services that compete with the Bank's Services. During the term of this Agreement, Direct Selling Agent shall not represent, promote or otherwise try to sell within the Territory any Services that, in Bank's judgment, compete with the Services offered by the Bank and which may be covered by this Agreement.

8. OBLIGATIONS OF THE DIRECT SELLING AGENT -

The Direct Selling Agent hereby agrees, undertakes and confirms as under.

i. He shall, at all times, maintain and respect, strict confidentiality of Confidential Information including all/any matters relating to the services and this Agreement.

ii. Without prior written permission of the Bank, the Direct Selling Agent shall not at any time use the name and/or trademark/logo of the Bank in any manner and for any purpose whatsoever.

iii. DSA shall ensure that the quality of services provided to the Bank under this agreement should be as per the standards agreed, prescribed and provided by the Bank.

iv. The Services to be rendered and the Direct selling Agent's obligations to be performed pursuant to this Agreement shall be rendered and performed by the business facilitator/Direct Selling Agent with utmost care and diligence. If at any time the Bank is dissatisfied with the Services rendered by the Direct Selling Agent, the Bank shall be entitled to terminate this Agreement. The Bank's decision in this regard shall be final, absolute and binding on the Direct Selling Agent.

v. Any information handed over by the Bank to the Direct Selling Agent in terms of this Agreement or which comes into the hands of the Direct Selling Agent's custody, power or possession pursuant to or in connection with this Agreement will remain the sole and absolute property of the Bank, and the Direct Selling Agent shall not have and also shall not claim any lien, right of retention, sale therein or thereon for any reason whatsoever.

vi. Direct Selling Agent agrees to maintain its books and records reasonably relating to the services performed and invoices issued pursuant to this Agreement for a period of ten (10) years following the end of the calendar year in which the work was performed and during that time, the Bank shall be entitled to access all books, records and information relevant to the Services available with the DSA . Upon request from the Bank, the Direct Selling Agent shall within 4 business days of such request provide to the Bank access to all the books, records end information in connection with Services.

vii. The Bank shall have a right, but not the obligation, to continuously monitor and assess the Services to be provided by the Direct Selling Agent.

viii. The Direct Selling Agent shall not without prior approval/consent of the Bank, use any Sub-contractor/Sub-agent/Third Party for undertaking all or part of the Services.

ix. The Direct Selling Agent shall isolate and clearly identify the Bank's customer information, documents, records and assets to protect the confidentiality of the information. In instances, where Direct selling Agent acts as an outsourcing agent for multiple banks, nonbanking financing services and financial institutions, maximum care shall be taken by it to build

robust safeguards so that there is no intermingling of information/documents, records and assets.

x. The Direct Selling Agent shall provide Services in compliance with the Applicable Laws and rules made thereunder, as amended, modified or substituted from time to time.

xi. All terms and conditions, payment schedules, time frame for implementation and rendering Services, etc. will remain unchanged unless explicitly communicated or executed as an amendment by the Bank and the Direct Selling Agent in writing.

xii. Direct Selling Agent shall use their best efforts to promote and obtain leads on commercial/Retail advances of firms/individuals/company/LLP/OPC/HUF/Proprietorship from various sources. Bank shall also provide reasonable assistance to Direct Selling Agent in promotional sourcing of activities. Business Facilitator will assist the bank by taking part in all promotional events, use the marketing inputs judiciously for maximizing sourcing of business leads of the bank.

xiii. Direct Selling Agent shall Identify potential customer as per the Bank specified guidelines/instructions/norms/ activity and obtain all the requisite documents and deliver these along with the duly filled in application form to the Branch for further processing.

xiv. DSA shall explain to the customer, the schemes/ products of the bank as well as fees and charges including loan processing and other charges for the proposed Loans/Advances as per nature of loan/facility/advances.

9. INDEPENDENT CONTRACTOR -

Direct Selling Agent is an independent contractor and nothing contained in this Agreement shall be construed to –

i. give either party the power to direct and control the day-to-day activities of the other;
ii. constitute the parties as partners, joint ventures, co-owners or otherwise, or;
iii. allow Direct Selling Agent to create or assume any obligation on behalf of Bank for any purpose whatsoever. Direct Selling Agent is not an employee of Bank and is not entitled to any employee benefits. Direct Selling Agent shall be responsible for paying all income taxes and other taxes charged to Direct Selling Agent on amounts earned hereunder. All

financial and other obligations associated with Direct Selling Agent's business are the sole responsibility of Direct Selling Agent.

iv. DSA shall ensure that there is no misrepresentation, exaggeration and that no inaccurate information is provided to the Customers and Non-customers of Bank by DSA or by its employees/officials with respect to the Bank's product and/or services.

v. The Parties acknowledge and agree that the relationship between them is solely that of independent contractors and nothing in this Agreement is to be constructed as employer /employee, franchise / franchisee, agent / principal, partners, joint ventures, co-owners, or otherwise participants in joint or common undertaking and the relationship is purely on a principal-to-principal basis.

vi. DSA shall not be entitled to, by act, word and deed or otherwise in any manner make any statement on behalf of the Bank or in any manner bind the Bank or hold out or represent that it is representing or acting as an agent of the Bank.

10. INDEMNIFICATION BY DIRECT SELLING AGENT -

(a) Direct Selling Agent shall at all times and at its own cost and expense, indemnify, defend or settle, without delay or demur and hold the Bank and/or its directors, employees, Affiliates, assignees indemnified, free and harmless at its expense, at all times from and against any and all actions/acts whether direct, indirect or incidental loss, losses, demands, liabilities (including statutory liability), claims, damages, actions, proceedings, penalties, costs and expenses, including reasonable attorney's fees (including without limitation, legal costs) and court costs, awards, damages, losses and/or expenses which Cosmos Bank may suffer or incur, directly attributable to Direct Selling Agent including reasonable attorney fees relating to, resulting from or in any way whatsoever, arising from or in connection with:-

i. Breach or non-performance by Direct Selling Agent of any of its representations, undertakings, warranties, covenants, declarations or obligations contained herein, including loss or damage arising out of misconduct or negligence while rendering the services and/or any claim, suit or proceeding brought against the Bank and/or its directors, employees etc. by any Third Party for any harm, loss or injury suffered by any Third Party arising from and out of such breach and/or;

ii. Any claim, suit or proceeding brought against Bank and/or its directors, employees etc. by any Third Party for any harm, loss or injury suffered by any Third Party arising from

and out of the performance or non-performance of the Services provided by Direct Selling Agent pursuant to this Agreement and/or;

iii. Any claim, suit or proceeding brought against Bank and/or its directors, employees etc. by any Third Party arising from and out of any deficiency of Service provided by Direct Selling Agent pursuant to this Agreement and/or;

iv. Any action of Direct Selling Agent not authorized or permitted under this Agreement and/or;

v. Breach of confidentiality obligations, intellectual property rights, data protection obligations by Direct Selling Agent and its employees, as contained in this Agreement; and/or;

vi. any data breach, unauthorised access or security incident attributable to the Direct Selling Agent's systems;

vii. Any inaccuracy, error, default, acts, deed, omission of any data, information as provided by the Direct Selling Agent or misconduct or non-performance on the part of the of the Direct Selling Agent and/or its employees/officials in performance of its obligations under this Agreement resulting in a loss, damage or claim against the Bank and / or its personnel;

viii. Misrepresentation (whether intentional or not), any willful misconduct, act of Negligence or gross negligence or criminal breach of trust, Fraud or fraudulent activities, Forgery, etc. on the Part of Direct Selling Agent or committed by any of its personnel or employees or officials in carrying out activities or providing services pursuant to this Agreement.

ix. Any violation of applicable laws, regulations by Direct Selling Agent in connection with the performance of this Agreement.

x. Any other act, omission, or event by the Direct Selling Agent or any of its employees/officials, giving rise to liability to bank under this Agreement, any law of the land, or otherwise howsoever arising.

(b) The indemnification obligations under this clause shall include, but not be limited to, indemnification for damages, losses, costs, and expenses incurred by the indemnified party as a result of legal actions, judgments, settlements, investigations, or regulatory proceedings arising from the aforementioned actions or circumstances.

(c) The Bank shall promptly notify Direct Selling Agent in writing of any claim, demand, or legal proceeding for which indemnification is sought.

(d) Notwithstanding anything to the contrary in this Agreement, the total liability of the Direct Selling Agent under this indemnification clause shall be limited to the extent of actual losses or damages suffered by the Bank.

(e) The obligations of indemnification set forth in this clause shall survive the termination or expiration of this Agreement and shall continue in full force and effect thereafter.

11. COMMISSION/PAYMENT TERMS -

A. Consideration -

a) In consideration for the Services rendered, the Direct Selling Agent will be entitled to receive commission from Bank as mentioned in the **Annexure-B** of this agreement, on monthly basis against converted Referral(s)/lead(s) which shall be become payable only upon disbursement of loan/advance and only for those lead(s) which were generated by Direct Selling Agent and provided to Bank. This commission will be subjected to the relevant taxes as applicable. The Bank reserves its right to revise the rate of commission from time to time and the same shall be intimated to the Direct Selling Agent in writing by the Bank.

b) The Direct Selling Agent shall invoice the Bank on a monthly basis for the services rendered during the preceding month.

c) All invoices shall be submitted to the designated billing contact at the Bank.

d) Concern branches will credit the bill amount to Direct Selling Agent's account with Cosmos Bank after deduction of tax at source and within 30 days on submission of hard copy/ signed soft copies of bill to respective Branch. Bill for the converted Referral(s)/lead(s) shall be submitted only upon disbursement of the loan/advance and only for those lead(s) which were generated by Direct Selling Agent and provided to Bank.

e) Payments shall be made by the method agreed upon by both parties, such as electronic funds transfer (EFT), bank transfer, or other mutually acceptable payment methods.

f) Direct Selling Agent shall provide a detailed breakdown of charges, including any applicable taxes, fees, or expenses in each invoice submitted to the Bank.

g) Each Party is responsible and liable for own costs and expenses incurred in connection with performing its obligations under this Agreement.

B. Basis of Commission -

The Bank shall be liable to pay commission only in respect of converted Referral(s)/lead(s) which shall be become payable only upon disbursement of loan/advance and only for those lead(s) which were generated by Direct Selling Agent and provided to Bank. No commissions shall be paid on -

a) leads/referrals solicited directly by Bank within the Territory;
b) leads/referrals received from outside the Territory unless otherwise agreed in writing by bank.
c) No commission will be paid to the Direct Selling Agent until 100% applicable fees pertaining to the application is received. The Bank reserves the right to change the commission rates [applicable on products/loans] as and when required.

C. Time of Payment -

The commission shall be due and payable basis monthly invoices submitted to the bank. The Direct Selling Agent shall submit to the Bank the monthly statements of commissions due and payable to Direct Selling Agent under the terms of this Agreement.

D. Incentive -

Bank shall pay the commission at such rates as agreed and documented between the parties. Bank will have the right to recover, any money or loss due to the Bank from the amounts due and payable by the Bank to the Direct Selling Agent without prejudice to any other remedies available to the Bank for recovering the same.

It Is further clarified that the Direct Selling Agent shall not be entitled to get any Incentive/Charges/Fees, etc. whatsoever in cases where Bank is obliged to pay remuneration to other persons/parties under any other arrangement, for the same loan proposal. The Direct Selling Agent will also be not eligible for any fee/incentive/Charges/Fees, etc. whatsoever in case of those customers who have directly approached to the Bank on their own.

E. Acceptance -

All requests for service provided by Direct Selling Agent shall be subject to acceptance by Bank. Direct Selling Agents shall have no authority to make any acceptance or commitments to customers. Bank specifically reserves the right to reject any lead generated for loan/advance or loan proposal of the lead/referral or any part thereof for any reason.

F. Collection -

DSA shall not collect any fees/payment from the customer for any reason whatsoever.

12. ADDITIONAL RESPONSIBILITIES OF DIRECT SELLING AGENT -

(a) Expense of Doing Business -

Direct Selling Agent shad bear all the cost and expense of conducting its business in accordance with the terms of this Agreement. This would include salaries for the staff of the Direct Selling Agent who are engaged in the business of selling the products of the Bank, expenses related to communications, telecommunication, mailing, conveyance if required. The Bank will not entertain any re-imbursement on any expense made by the Direct Selling Agent other than the commissions which is agreed and documented between the parties.

(b) Promotion of Products -

Direct Selling Agent shall make efforts to promote the sale of and stimulate demand for the bank's Services within the Territory by direct solicitation. In no event shall Direct Selling Agent make any representation, guarantee or warranty concerning the bank's Services except as expressly authorized by the Bank. Use of Bank logo, trademark, marks of use, product logo, any advertising/promotion / marketing activity conceived originally by the Direct Selling Agent should be first approved in writing by [Bank] before being used/implemented.

(c) Agents & Customer Service -

Direct Selling Agent shall inform and assist potential customers/leads on Banks Services, and shall perform such additional customer services by e-mail, phone and fax, whenever needed, as good salesmanship requires and as Bank may reasonably request.

13. CUSTOMER DISPUTES/GRIEVANCES -

Direct Selling Agent shall notify Bank of any Customer's complaints regarding either the Services or Bank and immediately forward to Bank the information regarding those complaints.

14. ADDITIONAL OBLIGATIONS OF BANK -

(a) Assistance in Promotion -

Bank shall, at its own expense, promptly provide Direct Selling Agent with marketing and technical information, training concerning the Services, brochures, instructional material, advertising literature, and other product data.

(b) Assistance in Technical Problems –

Bank shall, at its own expense, assist Direct Selling Agent and customers of the Bank's Services in all ways deemed reasonable by Bank in the solution of any problems relating to the Services.

(c) New Developments -

Bank shall inform Direct Selling Agent of any new Products or Services that are being introduced/launched/offered by the Bank to its customers.

15. INTELLECTUAL PROPERTY RIGHTS -

(a) For this agreement, Intellectual Property shall mean the Intellectual Property Rights as defined under definition **Clause 1(h)** of this agreement.

(b) Nothing in this Agreement shall be construed as transfer any of either Party's Intellectual Property Rights to the other Party, and

(c) each Party will retain exclusive interest in and ownership of its Intellectual Property developed before this agreement or developed outside the scope of this Agreement.

(d) Neither Party must use the other Party's trademarks, logos or brands, without obtaining written approval to this effect.

(e) During the term of this Agreement, Direct Selling Agent shall only have the right to indicate to the public that it is an authorized Direct Selling Agent of Bank's Services provided that before such public disclosure, the means and content of such disclosure shall be approved by Bank in writing. Nothing herein shall grant Direct Selling Agent any right, title, or

interest in Bank' s Trademarks/IPR, at no time during or after the term of this Agreement shall Direct Selling Agent challenge or assist others to challenge Bank's Trademarks or the registration thereof or attempt to register any trademarks, marks or trade names confusingly similar to those of Bank.

16. SUB-CONTRACTORS

i. The Direct Selling Agent shall neither assign, nor sub-contract the benefits or performance of any or part of its roles, responsibilities or obligations, duties or under this Agreement in whole or in part, to any agent/sub-agent/sub-contractor / any third party without obtaining prior written permission/consent of the Bank, which the Bank may deny at its absolute discretion. Provided that Cosmos Bank may assign any of its rights and obligations hereunder to any of its Affiliates with a prior intimation to the of the Direct Selling Agent.

ii. It is expressly clarified and agreed between the Parties that in the event the Bank grants approval for any such request, the Direct Selling Agent shall be fully liable to the Bank for all acts and omissions of agent/ sub-agent /contractor/subcontractor/third party and the Direct Selling Agent's indemnity shall stand extended mutatismutandis to all acts and omissions by such agent /sub-agent [contractor [sub-contractor without any further amendment to this Agreement and Direct Selling Agent shall indemnify the Bank against any breaches or liabilities arising from such sub-licensing, assignment, or transfer.

iii. The Direct Selling Agent agrees that it shall ensure that any such agent [subagent /contractor /sub-contractor is bound by the terms and conditions which are no less stringent than the terms and conditions as contained in this Agreement and all the rights available to the Bank vis-a-vis the Direct Selling Agent under the Agreement shall also be available to the Bank vis-a-vis the agent [sub-agent /contractor /sub-contractor.

iv. The Direct Selling Agent shall establish defined mechanisms to enable the Direct Selling Agent and Bank to select, monitor and any other regulatory authority or RBI to audit the agent [sub-agent [contractor /subcontractor appointed in accordance with this Agreement.

v. The Direct Selling Agent expressly acknowledges and confirms that the Bank shall be entitled to exercise supervisory and inspection rights against the contractor, agent, subagent or subcontractors of the Service Provider/DSA as are available under this Agreement.

vi. Nothing in this Agreement shall be construed to create any contractual relationship between the Bank and any subcontractor, nor may any obligation on the part of the Bank to pay or see to the payment of any money due to any subcontractor, except as be otherwise required by law.

vii. Approval of any contractor or subcontractor by the Bank shall not constitute a superseding event or waiver of any right of the Bank to reject work which is not in conformance with the standards set forth this Agreement and does not constitute nor imply authorization of expenses in excess of budgets.

viii. To the extent the Direct Selling Agent subcontracts to third parties any of its obligations set forth in this Agreement, the Direct Selling Agent shall remain fully responsible for such obligations and for all acts or omissions of its subcontractors or agents.

17. INSURANCE

(a) The Direct Selling Agent, shall also take, at its own costs, insurance policies for adequate amount against dishonesty, theft, negligence, extortion, robbery, forgery, altered documents, fraud, fidelity and/or any other dishonest and/or negligent acts on the part of Direct Selling Agent's Personnels or agents/subcontractors or representatives or employees of such agents/subcontractors with the Bank being the beneficiary.

(b) The Direct Selling Agent further undertakes, at its sole expense, to obtain comprehensive general liability insurance covering accidental losses, bodily harm, injury, death of it's Personnel deployed by the Direct Selling Agent to perform the Services.

(c) The Direct Selling Agent further undertakes to obtain, at its own costs, adequate fire insurance against fire which can destroy the Bank's property entrusted with them or which loss, if occurs at their premises will be detrimental to the interest of the Bank.

(d) The Direct Selling Agent undertakes to provide such documentary proof of compliance with this Clause as may be required by the Bank or its auditors or any other authorities.

(e) The Direct Selling Agent shall promptly notify the Bank of any actual or potential claim under any of the insurance policies referred to in this Clause. Each such notice shall be accompanied by full details of the incidents giving rise to the claim. The direct selling agent shall afford the Bank all such assistance as may be required for the preparation and negotiation of any claim under an insurance policy.

(f) The fact that the Bank has taken insurance coverage shall not absolve the Service Provider/DSA of its liability under this Clause. In an event of any loss suffered by the Bank, for the above-mentioned incidents, the Direct selling Agent shall upon demand and not more than 7 (seven) days' time make good the loss to the Bank without any demur, protest, dispute or objection. However, the Bank will pay back such amount to the Direct selling Agent, upon actual recovery of any claim amount from the insurance company.

18. TERM AND TERMINATION

a) **Term -** This Agreement shall commence on the date first written above i.e. effective date and shall remain valid and in effect for a period of **2 (two) year** therefrom unless terminated by either Party in accordance with the provisions of this agreement. The Parties agree that this Agreement may be renewed by the Bank on mutually agreed upon terms and conditions.

b) **Termination -** Either party to this agreement shall have the right to terminate this agreement with or without cause with a thirty (30) days written notice to the other party.

c) **Termination with cause -** Either Party may terminate this Agreement immediately upon written notice if the other Party:-

i. becomes insolvent, bankrupt, or enters into any form of liquidation, receivership, or dissolution (as applicable);
ii. engages in fraudulent activities, misconduct, or illegal actions that materially affect the performance or integrity of this Agreement;
iii. materially breaches any terms and conditions, clause/s, covenants, undertakings, warranties (including but not limited to payment obligations) and fails to cure such a breach within 15 (Fifteen) days from delivery of a notice informing, specifying the breach and requiring its remedy;
iv. breach of confidentiality, quality standards or data security obligations;
v. Any misuse of Bank’s IPR, customer data and customer information;
vi. the other party experiences a change in control or ownership that adversely impacts the rights or obligations under this Agreement.

vii. any act/action conducted by either party which is prejudicial or detrimental to the interest of the other party.

viii. and for any other ground for termination as stated in this agreement.

d) Bank reserves the right to terminate the agreement by giving notice in writing of 30 days if it is found that the services offered by the Direct Selling Agent are dissatisfactory.

e) Bank has designed a code of conduct based on the Model Code of Conduct for Direct Selling Agent as devised by IBA and the same is displayed on Bank's website. The Direct Selling Agent needs to practice the said code of conduct and the same shall be construed as part of these presents and violation/ non observation of any conditions/ obligations shall be deemed as violation/breach of this agreement and bank can take appropriate legal action.

f) In case of unsatisfactory performance or misconduct of business facilitator/DSA or its employees/officials, the Bank shall terminate the agreement with immediate effect without any recourse to the DSA.

g) Any Direct Selling Agent not performing to the full satisfaction of the Bank in terms of securing new orders and Bank's policies is liable to be terminated.

h) The Direct Selling Agent hereby acknowledges that DSA has read the said model code of conduct and has fully understood all the terms and conditions mentioned therein and shall abide by the said code of conduct in letter and spirit.

i) The Direct Selling Agent shall surrender the letter of authority/any document/s issued to him/her/it by the Bank immediately on the date of termination.

j) The Bank will have the right to recover, any money or loss due to the Bank, from the amounts due and payable by the Bank without prejudice to any other remedies the Bank may adopt for recovering the same.

k) **Effect of Termination –** All of Bank's trademarks, trade names, data, photographs, literature and sales aids, customer related database of every kind shall remain the property of Bank. Upon termination or expiration of this Agreement for any reason, Direct Selling Agent shall promptly cease providing services to the Bank and Direct Selling Agent

shall within five (5) days after the termination of this Agreement, return or destroy all Confidential Information and materials (if any) belonging to the Bank in its possession or control and shall certify in writing that it has performed the foregoing. Direct Selling Agent shall not make or retain any copies of any confidential items or information that may have been entrusted to it. Effective upon the termination of this Agreement, Direct Selling Agent shall cease to use all trademarks, marks and trade name of Bank.

l) **In case of premature Termination of this Agreement with DSA, the details of such DSA(s) along with reasons for termination will be informed to Indian Bank's Association (IBA).**

m) This agreement will be reviewed by the Bank after a period of [24 months].

n) **Survival –** The termination of this Agreement shall not affect the rights or liabilities of either Party incurred prior to such termination. In addition, any act performed during the term of this Agreement which may result in a dispute post termination or any provision expressed to survive this Agreement or to be effective on termination or the obligations set out in this Clause shall remain in full force and effect notwithstanding termination. The provisions of this Agreement that by their nature are intended to survive termination or expiration, including but not limited to confidentiality, indemnification, limitation of liability and dispute resolution, shall survive any termination or expiration of this Agreement.

19. LIMITATION ON LIABILITY

(a) Except for the indemnification obligations, neither party shall be liable to the other party for any indirect, consequential, punitive, incidental, special, or exemplary damages, including but not limited to loss of prospective/future profits, loss of revenue, loss of data, or interruption of business, or anticipated sales or on account of expenditures or commitments in connection with the business of Bank or Direct Selling Agent arising out of or in connection with this Agreement, even if advised of the possibility of such damages.

(b) The Total Liability of Direct Selling Agent under this agreement, whether in contract, tort including negligence, strict liability, or otherwise, shall be limited to the total extent of loss suffered by the Bank under this agreement.

(c) The Total Liability of Bank under this agreement, whether in contract, tort including negligence, strict liability, or otherwise, shall be limited to the twice the amount of three

month's commission payable by Bank to the Direct Selling Agent to the Bank under this agreement.

(d) Notwithstanding the foregoing, the limitations of liability set forth in this clause shall not apply to:

i. Damages arising from the gross negligence, wilful misconduct, or fraud Direct Selling Agent or any of its personnel or employee/s or officials.

ii. Indemnification obligations as set forth in this Agreement.

iii. Breaches of confidentiality (leakage of confidential customer related information) or breach of security or intellectual property rights or misuse of IPR.

iv. Any losses or damages caused to the Bank (which is directly attributable to Direct Selling Agent) due to the actions, inactions, activities, omission or commission of any act of Direct Selling Agent or any of its employees which is beyond the scope of roles, responsibilities and duties assigned to that employee which is detrimental to the interest of the bank.

(e) Each party acknowledges and agrees that the limitations of liability set forth in this clause are fair and reasonable given the nature of the services provided and the fees charged under this Agreement.

20. DISPUTE RESOLUTION -

Any dispute, disagreements or claims arising out of, or relating to, this Agreement or any of the provisions thereof shall be attempted to be amicably resolved through conciliation, discussions and negotiations between the authorized representatives of the Parties within 30 (thirty) days from the receipt of the written notice from the Party raising the Dispute and requesting amicable resolution under this provision.

The Parties agree that in the event the Parties fail to resolve the dispute through the process detailed hereinabove, the dispute shall be adjudicated by the arbitrator that will be appointed by the parties in accordance with the Arbitration and Conciliation Act, 1996 as amended from time to time. There will be appointment of sole arbitrator. The Seat and Venue of the arbitration proceedings shall be Pune. The cost of appointment of the arbitrator and the proceedings thereafter shall be equally borne by the Parties herein. Language of the arbitration shall be English. The award would be binding upon both the parties.

21. CONFIDENTIALITY -

(a) For this agreement, Confidential information shall mean confidential information as defined under definition **clause 1(d)** of this agreement.

(b) Direct Selling Agent acknowledges that by reason of its relationship to Bank hereunder it will have access to certain information and materials concerning Bank's business plans, customers, technology, and products/services that is confidential and of substantial value to Bank, which value would be impaired if such information were disclosed to third parties. Direct Selling Agent agrees that it shall not use in any way for its own account or the account of any third party, nor disclose to any third party, any such confidential information revealed to it by the Bank. Bank has the sole ownership of& the right to use, all such data in perpetuity including any data or other information pertaining to the customer that may be in the possession of the Direct Selling Agent or Direct Selling Agent's team in their course of performing the Service(s) under the Contract / Agreement

(c) Direct Selling Agent shall not publish any description of the Products/Services beyond the description published by Bank and without the prior written consent of the Bank. In the event of termination of this Agreement, there shall be no use or disclosure by Direct Selling Agent of any confidential information of Bank.

(d) The Direct Selling Agent hereby represents & warrants that it shall ensure the preservation & protection of the security & confidentiality of the customer information or data which are in the custody or possession. The confidentiality shall survive the termination of This agreement. Direct Selling Agent agrees that it shall not use in any way for its own account or the account of any third party, nor disclose to any third party, any such confidential information revealed to it by the Bank.

(e) The Parties agree and understand that during the course of this Agreement, either Party may be required to provide/permit access to the other Party of certain confidential and proprietary information, including but not limited to summaries, data concerning finance, business operations, methods, transactions, affairs, concepts, ideas, services, products, software and other data, customer and merchant, sub-merchant information, knowledge, content or information in written form and whether designated or not as confidential (collectively "Confidential Information").

(f) The Parties agree that they shall keep the Confidential Information as confidential and shall not disclose the same to any other third party without the prior written permission

of the disclosing Party. The Parties agree that the receiving Party may disclose the Confidential Information to its employees, agents or representative on a "need to know basis" for carrying out its role and obligations under this Agreement and under strict confidentiality obligations no less restrictive than those set forth in this agreement.

(g) All communications between the Parties and all Confidential Information given to or received by any of them from the other, and all information concerning the business transactions and the financial arrangements between the Parties, shall be kept confidential by the receiving Party and shall not be disclosed without the prior written permission of the Party owing the Confidential Information unless or until the recipient can reasonably demonstrate that any such communication or confidential information was already in the public domain through no fault of its own, or was required to be disclosed pursuant to the obligations under existing laws.

(h) Each Party shall take appropriate and adequate precautions as may be feasible or as may be directed by RBI Guidelines to ensure that there is no breach of security and that the integrity of the link between Bank and Direct Selling Agents always maintained at all times.

(i) **Exceptions to Confidentiality:** The obligations of confidentiality shall not apply to information that:

i. at the date of its disclosure is public knowledge or which subsequently becomes public knowledge other than by way of a breach of the terms hereunder; or

ii. was available to the receiving Party or becomes known to the receiving Party prior to its disclosure by disclosing Party from sources which to the receiving Party's knowledge are under no obligation of confidentiality to the disclosing Party ; or

iii. is required to be disclosed pursuant to order of a court of competent jurisdiction or under any statutory requirements or statutory order, decree; or

iv. the disclosing Party previously agrees in writing that it may be disclosed; or

v. is required to be disclosed by the receiving Party to any outside consultant or professional advisers "on need to know basis", on a confidential basis if the receiving Party in its absolute discretion considers such disclosure to be appropriate and necessary for the purposes of carrying out the activities agreed between the Parties under this Agreement; or

vi. information that is independently developed by the receiving Party without use of or reference or access to the personal and financial information or other Confidential Information shared by the disclosing Party.

vii. Becomes publicly available/known through no fault, wrongful act or omission or breach of confidentiality by the Receiving Party.

viii. Is rightfully and lawfully obtained by the Receiving Party from a third party without restrictions on disclosure.

(j) Protection of Confidential Information: The Receiving Party shall take reasonable measures to protect confidentiality and prevent unauthorized disclosure of the Disclosing Party's Confidential Information, including implementing and maintaining adequate safeguards, policies, and procedures.

(k) Return or Destruction of Confidential Information: Upon termination or expiration of this agreement, or upon written request by the Bank, Direct Selling Agentshall promptly return or destroy all copies of Confidential Information in its possession or control and provide written certification of such return or destruction upon request.

(l) Survival of Confidentiality Obligations: The obligations with respect to Confidential Information disclosed under this Agreement shall apply to all Confidential Information made available to other Party, from the date of execution of this Agreement and shall survive Termination of this Agreement and continue for as long as such information remains confidential.

(m) Breach of Confidentiality Obligations - In case of breach of confidential information which includes the protection of data by both parties, the defaulting party shall be liable under the provisions of Information Technology Act, 2000 and/or any other law for the time being in force governing the confidentiality obligations.

22. BREACH NOTIFICATION -

Direct Selling Agent shall notify the Bank in writing within six (6) hours of becoming aware of any actual or suspected security incident, data breach, involving the use of the customer data and shall cooperate fully with the Bank and relevant authorities in investigating and remediating the same.

23. BRANDING -

(a) Direct Selling Agent shall not use name of the Cosmos Bank without its prior written approval. Any requests content for external communication (including verbal communication such as media interviews) which mention the name and logo of Cosmos Bank, like, press releases, case study on website, social media posts among others shall be shared with Cosmos Bank for its views and approvals.

(b) Direct Selling Agent shall not use Cosmos Bank's brand name without authorization and approval from Cosmos Bank and acknowledge that Cosmos Bank holds the right to take action against the same.

24. AUDIT -

(a) The Bank/Reserve Bank of India reserves the right to inspect & monitor/assess the progress of the services at any time during the Agreement. The bank may demand & upon such demand being made, bank shall be provided with any document, data, material or any other information, which it may require, to enable it to assess the progress of the services.

(b) The Direct Selling Agent is required to extend all necessary co-operations to facilitate audit process.

(c) The Direct Selling Agent shall allow the Bank/Reserve bank of India or persons authorized by them to access the Bank/Direct selling Agent's documents, records & transactions &other necessary information given to or stored or processed by the Direct Selling Agent within a reasonable time, the Direct Selling Agent will reimburse the bank which they may be liable to pay supervisory fees to Reserve bank of India.

(d) Bank shall utilize the services of internal or external auditors for ensuring proper operations by the Direct Selling Agent.

(e) The Bank/Reserve Bank of India reserves its right to inspect and monitor/access the progress/activities of the services and related documents at any time during the course of the contract/agreement. Bank/Reserve Bank of India may demand and upon such demand being made, Bank/Reserve of India shall be provided with any document, data, and material.

(f) Reserve Bank of India or persons authorized by it can access the documents, records of transactions, books and accounts and other necessary information given to, stored or processed by the Direct Selling Agent, with respect to the services under this agreement within a reasonable time from receiving an advance notice of not less than 7 days to this effect unless urgent circumstances necessitate immediate auditing actions.

(g) Reserve Bank of India or persons authorized by it can cause an inspection to be made of Merchant and its books and account by one or more of its officers or employees or other persons.

(h) Bank will have the right to conduct audits on the Direct Selling Agent whether by its internal or external auditors or by agents appointed to act on its behalf and to obtain copies of any audit or review reports and findings made on the Direct Selling Agent in conjunction with the services performed for the Bank by providing an advance notice of no less than 7(Seven) Days unless urgent circumstances necessitate immediate auditing actions.

(i) Direct Selling Agent recognizes the right of RBI or any other statutory or regulatory body, by itself or through a third party engaged by it, to audit, to examine, conduct a due diligence or inspect Direct Selling Agent's records, policies and procedures, logs, documentation, correspondence, business operations related to services provided by Direct Selling Agent under this Agreement.

(j) Direct Selling Agent shall cooperate fully with the Bank or its auditors during audits, providing access to relevant systems, facilities, personnel, and records as reasonably required for the audit purposes.

(k) Audits shall be conducted during regular business hours and with reasonable advance notice to the service provider unless urgent circumstances necessitate immediate auditing actions.

(l) The Bank shall share audit findings and reports with the Direct Selling Agent, allowing Direct Selling Agent to address any identified deficiencies, non-compliance issues, or areas for improvement within a reasonable timeframe as agreed upon by both parties.

(m)Any costs associated with audits, including third-party audit fees, shall be borne by the Bank unless the audit reveals material breaches or non-compliance by the Direct Selling Agent, in which case, the service provider shall reimburse the Bank for reasonable audit costs.

(n) The audit rights granted herein shall survive the termination or expiration of this Agreement for a period of 1 year to allow for post-termination audits and resolution of outstanding issues.

25. COMPLIANCE WITH LAWS, PRIVACY POLICY AND STANDARDS –

Either Party hereby represents and warrants that it is and shall remain during the term of this agreement in compliance with all applicable laws, regulations, codes and industry standards related to the services provided under this agreement including but not limited to the Digital Personal Data Protection Act, 2023, Information Technology Act, 2000 and any rules, regulations, notifications, guidelines framed thereunder as amended and applicable form time to time and all relevant notifications and guidelines issues by RBI and any other regulatory body/authority governing the subject matter of this agreement in present or in future and any other applicable laws and standards applicable to the services provided.

26. GOVERNING LAW AND JURISDICTION -

The Parties shall be at liberty to take/ initiate appropriate legal action and the agreement shall, in all respects, be governed by and construed and enforced in accordance with the laws of India. All proceedings in respect of any dispute or difference arising under this Agreement among the Parties shall be subject to the exclusive jurisdiction of the competent courts in Pune, Maharashtra.

27. ENTIRE AGREEMENT -

This Agreement constitutes the entire agreement and understanding between the Parties relating to the subject matter herein and supersedes any prior discussions or agreements between them. No modification of or amendment to neither this Agreement, nor any waiver of any rights under this Agreement to be done unilaterally and it shall be effective unless in writing signed by the party to be charged. No representation, inducement, promise,

understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto.

28. NOTICES -

Unless otherwise provided herein, all notices or other communications under or in connection with this Agreement shall be given in writing and may be sent by personal delivery or post or courier or email. Any such notices required or permitted by this Agreement shall be deemed given if sent by certified mail, postage prepared, Speed Post A.D., return receipt requested or by recognized overnight delivery service:

If to - COSMOS CO-OPERATIVE BANK LIMITED

Designation:

Address: Cosmos Bhawan" Plot No. 6, S.No. 132/B, ICS Colony, Ganeshkhind Road, Pune – 411007 Maharashtra

Email: customercare@cosmos.bank.in

If to DIRECT SELLING AGENT:

[Direct Selling Agent]

[Address Line 1]

[Address Line 2] [City,State, Pin Code]

Any notice given as provided by this Clause shall be deemed received by the Party to whom it is addressed when:-

i. in the case of any notice delivered by hand, when so delivered;
ii. if sent by pre-paid post on the third clear day after the date of posting;
iii. if sent by e-mail, 24; hours after the mail is sent.

29. NON-ASSIGNABILITY AND BINDING EFFECT

Direct Selling Agent agrees that its rights and obligations under this Agreement may not be transferred or assigned directly or indirectly. Subject to the foregoing, this Agreement and the

provisions herein contained shall be binding upon and insure to the benefit of the parties hereto, their respective successors and permitted assigns.

30. FORCE MAJEURE –

Neither Party shall be liable or responsible for any failure to perform or delay in performance of their respective obligations hereunder if such failure or delay is due or attributable to or arises out of any Force Majeure event, as more particularly defined under Definition **Clause 1(g)** of this agreement, provided written notice of occurrence of any Force Majeure event is given by the affected Party to the other Party within a period of 7 (Seven) days of such occurrence and such notice includes reasonably satisfactory evidence of the Force Majeure event. Parties shall consult together to find a mutually acceptable solution.

31. SEVERABILITY -

If any provision of this Agreement is held to be invalid by a court of competent jurisdiction, then the remaining provisions shall nevertheless remain in full force and effect.

32. COUNTERPART -

This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original and all of which together shall constitute one and the same instrument

33. Non transferability of leads by DSA

- Non transfer clause

  After generating the lead DSA must not transfer/redirect or suggest that the customer approach in any other Bank, Financial Institution within a minimum period of one year from the date of Loan disbursement.
- Commitment to customer retention

  This clause is designed to strengthen the relationship between the Bank and its borrowers, ensuring continuity and stability in the borrower's Banking experience.
- Monitoring and enforcement

  The Bank will periodically monitor the loan accounts sourced through DSAs to ensure adherence to this policy. Any deviation by DSAs from this agreement may result in termination of the contract or other penalties as specified by the Bank's terms of engagement.
- Renewal Option Post period

After three years period, if the borrow wishes to transfer or explore alternative options, they are free to do so following the usual Bank policies. Pre closure charges will be applicable as per Bank's policy.

- Accountability and compliance

  DSAs will sign an agreement committing to this non transfer clause, which will be part of the Bank's broader compliance and performance monitoring framework for Direct Selling Agent.

34. ASSIGNMENT -

Direct Selling Agent agrees and undertakes that it has no right to assign or further transfer any of the rights and privileges that vest or will vest in the Direct Selling Agent in terms of this Agreement or delegate in any ménner whatsoever any of responsibilities as encompassed in terms of the present Agreement to any third party. The Bank shall be free to assign any of its rights under this Agreement.

35. FURTHER DOCUMENTS -

The Direct Selling Agent agrees to execute and deliver to the Bank all documents or do any acts which the Bank may reasonably deem necessary to effectuate the intent of this Agreement and perfect the rights granted herein.

36. MISCELLANEOUS -

(a) Any provision of this Agreement may be amended or waived if, and only if such amendment or waiver is in writing and signed by both the parties, in the case of an amendment by each Party, or in the case of a waiver, by the Party against whom the waiver is to be effective.

(b) No failure or delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any other right, power or privilege. The rights and remedies herein provided shall be cumulative and not exclusive of any rights or remedies provided by law.

(c) Neither this Agreement nor any provision hereof is intended to confer upon any Person other than the Parties to this Agreement any rights or remedies hereunder.

(d) In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

(e) The invalidity or unenforceability of any provisions of this Agreement in any jurisdiction shall not effect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the Parties hereunder shall be enforceable to the fullest extent permitted by law.

(f) This Agreement has been signed in duplicate, each of which shall be deemed to be an original.

(g) The captions herein are included for convenience of reference only and shall be ignored in the construction or interpretation hereof.

(h) This Agreement together with all Annexures hereto form a single Agreement between the Parties hereto.

(i) The Parties shall be bound by the applicable laws and shall ensure compliance with any statues, regulations or guidelines made applicable to them from time to time.

(j) Neither Party shall violate any proprietary and intellectual property rights of the other Party or any third party, including without limitation, confidentiality obligations, trademark, trade name, logo, content, patent, trade secrets, copyright and any other proprietary rights. Either Party shall seek prior consent from the other Party to use the trademark, trade name, logo, content, patent, trade secrets, copyright and any other proprietary rights of the said Party.

(k) Direct Selling Agent shall submit certification by an independent certified agency on adherence to security and resilience standards by the Direct Selling Agent on a periodic basis.

(l) Each of the Parties hereby to undertake with the other to act in the utmost good faith in interpreting and implementing this Agreement and agree to do all things reasonably within its power which are necessary or desirable to give effect to the spirit and intent of this Agreement.

(m) Direct Selling Agent shall be responsible for information security and business continuity as per the Cosmos Bank's standards in case there is an outsourcing or sub-contracting or assignment of services by the Direct Selling Agent.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first above written.

For and on behalf of **COSMOS CO-OPERATIVE BANK LIMITED:** _____ Signature: Name: Designation/ Title:	For and on behalf of **_____:** _____ Signature: Name: Designation/ Title:

WITNESSES: -

1. Name:

Signature:

Address:

2. Name:

Signature:

Address:

ANNEXURE - A

SCOPE OF SERVICES OF DIRECT SELLING AGENT

- The Bank's products and services are to be sold by Direct Selling Agent to the Prospective Customer(s)/Lead(s)/Referral(s) which also includes provision of such other services as may be communicated by the Bank in writing to the Direct Selling Agent from time to time.
- Scope of services to be provided by Direct Selling Agent during the term of engagement with Bank is as follows:-
    I. The Direct Selling Agent shall obtain/source Referral(s)/Lead(s) for Retail/commercial advances and deposit products (CASA and Term deposit) of

individuals/firms/companies/LLP/OPC/HUF/Proprietorship or on any other bank's products as approved by the Bank from time to time.

II. Identify potential business customer(s) suitable for the Bank as per the Bank specified norms/ activity/instruction/guidelines.

III. DSA shall conduct preliminary inquiry of Referral(s)/Lead(s)/Customer and shall perform preliminary due diligence, including KYC and KYB.

IV. Explaining to the Referral(s)/Lead(s)/Customer, various schemes/ products of the bank as well as fees and charges including loan processing and registration, legal and other charges for the proposed Loans/Advances as per nature of loan/facility/advances to be availed by the Referral(s)/Lead(s)/Customer.

V. Submit leads to the Bank via the agreed channel and upon receipt of go ahead/confirmation from Branch(s) allocated on the loan proposal, proceed further as per instructions received from the respective allotted branch.

VI. Assisting the customer in duly filling out the loan applications/forms. Obtaining all the requisite documents from Referral(s)/Lead(s)/Customer. Collecting the same from Referral(s)/Lead(s)/Customer and submitting/delivering the duly filled application forms, KYC and other related documents required to assess the proposal to the Branch(s) allocated to DSA by bank for further processing.

VII. DSA shall ensure accurate information flow to Bank and shall maintain the transparency between the Bank and the customer.

VIII. DSA shall further ensure that all the referral data, referral information and documentation provided to the Bank is complete and authentic.

IX. DSA shall always maintain strict confidentiality of customer names, customer data/ information as well as bank processes and shall not disclose any information without prior written consent of the Bank.

X. DSA shall follow up with respective branches and customer/ referral provided by it for completing pending documentation as well as with bank for disbursement of loan/advances, thereby acting as Mediator between the Bank and customer till the time of actual disbursement of loans or actual mobilisation of business occurs.

XI. DSA shall not enter into an agreement with the customer(s)/Lead(s)/Referral(s) on behalf of the Bank directly but will redirect them to the Bank and will thus act in the capacity of a qualified lead generator.

XII. The Bank shall have the sole discretion to select and enter into definitive agreements with the prospective customers referred by the Direct Selling Agent and Bank shall also have the sole discretion to accept/reject the loan proposal.

XIII. DSA cannot further appoint a sub-agent/Sub-contractor/third party to perform its obligations pursuant to this agreement.

XIV. DSA is neither permitted nor entitled to charge or to receive any fees/commission from the customer(s)/referral(s)/lead(s).

XV. DSA shall comply with all applicable laws, regulations, and guidelines which may be issued by the RBI/ which may be shared by Bank (from time to time) with Direct Selling Agent.

ANNEXURE - B

COMMERCIALS

SERVICE FEES / PAYOUT STRUCTURE

Type and Loan Amount	**Payout structure Loans up to Rs. 3.00 Crore**
Pharmaceutical Loan	1.00%
Hello Doctor	1.00%
Home	0.75%
Car Loan	0.75%
Commercial Vehicle Loan	0.75%
Small Business Loan	1.00%
Cosmo Udyog Loan	1.00%
Education Loan	0.50%
Mortgage Term Loan	0.75%

Payout will be given on funded limits only, payout on non-fund limits will not be paid.